

Due Diligence Pack

10 steps • 18 min read • Available from the Boardroom plan

Due diligence rewards preparation. A tidy, complete pack shortens the process, reduces back-and-forth, and signals to investors that your company is run properly. This playbook sets out the pack most South African investors expect to see.

WHY IT MATTERS

- A disorganised data room is one of the most common causes of delayed or collapsed early-stage funding rounds.
- Board resolutions are the paper trail the Companies Act requires for major corporate decisions — missing resolutions raise questions investors will not let go.
- Consistent service agreements with contractors and vendors show investors your key relationships (and your IP) are properly secured.

Step-by-step

1

Assemble your corporate records

MOI, share register, shareholder agreements, and CIPC filings, current and complete.

2

Assemble your board history

Every material board decision should have a corresponding, signed Board Resolution wizard output — from director appointments to share issuances.

3

Assemble employment records

Signed employment contracts, the employee handbook, and any outstanding disputes or settlements.

4

Assemble contractor and vendor agreements

Run the Service Agreement wizard for any contractor or vendor relationship missing a signed agreement, particularly anyone who has touched your IP.

5

Confirm IP assignment is complete

Every founder, employee, and contractor who has contributed code, design, or content should have signed IP assignment terms in their agreement.

6

Assemble financial and tax records

Financial statements, tax filings, and any outstanding SARS matters, organised by year.

7

Assemble compliance records

POPIA privacy policy, data processing agreements, and any sector-specific licences or registrations.

8

Reconcile everything against the Company Snapshot

Cross-check that officers, shareholders, filings, and policy versions on file match what is actually in the data room — gaps here are the first thing a diligence team flags.

9

Assemble the evidence pack for each document

Attach hashes, timestamps, and signer identity data for every signed document so investors can verify authenticity without extra correspondence.

10

Package and share via a scoped data room link

Grant time-limited, scoped access rather than emailing a folder of attachments, and log who viewed what and when.

Quick checklist

- Corporate records (MOI, share register, filings) current
- Every material board decision backed by a signed resolution
- Employment records complete and organised
- Contractor and vendor agreements signed, IP assigned
- Financial and tax records organised by year
- Compliance records (POPIA, licences) included
- Company Snapshot reconciled against the data room
- Evidence pack attached to every signed document
- Data room shared via scoped, time-limited access

RELATED WIZARDS — JUMP STRAIGHT IN

→ **Board Resolution** → **Service Agreement**

This playbook is general guidance for South African startups and SMEs and is not a substitute for advice on your specific circumstances. Run the linked wizards on The StartUp Legal platform to generate, negotiate, and e-sign the actual documents — each completed run produces a receiver-grade document, a full evidence pack, and an update to your Company Snapshot.